



Oregon

Kate Brown, Governor

Oregon Department of Human Services

Director's Office

Governor's Advocacy Office

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October 28, 2021

AshLe' Penn
16179 NW Brugger Rd., Apt. 303
Portland, OR 97229

RE: GAO case 34714

Dear AshLe' Penn,

The purpose of this letter is to present the findings of our research following our conversations beginning September 13, 2021.

As we have shared previously, the Governor's Advocacy Office (GAO) is under both the Oregon Governor's Office and the Oregon Department of Human Services (ODHS) Director's Office and is empowered to review questions, concerns, and complaints that any individual has with a ODHS program or service. As a part of the ODHS Director's office, we are administratively a part of ODHS and can access ODHS information systems and confidential case files, but because we are not a part of the programs we review, we are able to independently evaluate situations and make recommendations to resolve issues. The GAO is most effective when situations allow us to provide relevant information and resources, navigate customer service concerns, guide individuals through their due process rights, ensure the agency's obligation to nondiscrimination, and review administrative action.

Discussion

From our conversations and your emails to the GAO on and around September 13, 2021, we were able to discern 12 separate points for review and discussion. While this will likely not satisfy all of the concerns you presented to this office, many points were combined as the majority of concerns not directly addressed in this letter pertain to legal proceedings, where this office does not have jurisdiction or influence. For these matters, we encourage you to work with

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your attorney. Our overall findings will be discussed after this section, toward the end of this document. Our summary of your assertions will be in italics, and our research or response will follow.

- 1. You allege abuse has not been defined in your case; that domestic violence against yourself does not meet the requirement of abuse. You have also not been given due process to appeal ODHS 'Founded' dispositions.*

GAO response: You have been 'Founded' for "Threat of Harm" by ODHS in a Child Protective Services (CPS) assessment dated March 2020. Oregon Revised Statute (ORS) 419B.005(5) includes "threat of harm" in its definition of child abuse, specifically that "[t]hreatened harm to a child, which means subjecting a child to a substantial risk of harm to the child's health or welfare." These assessments defended this position by stating that you failed to cooperate with measures that would have been protective of your children related to domestic violence, filed for restraining orders and would then have those restraining orders dismissed, refused to cooperate with the District Attorney's office when charges were filed against your abuser Mr. Sanders for strangulation. These assessments included disclosures from your children that they feared that you would be killed, and that you would continue to "open the door" for Mr. Sanders against their wishes.

Assessments are administrative findings, and the burden of evidence is "reasonable cause to believe." Because you were "Founded," that means CPS found there was reasonable cause to believe the abuse defined above occurred. This is a different evidentiary standard than other court proceedings, such as "beyond a reasonable doubt" in criminal proceedings. CPS assessment dispositions have a due process where you can request a review at the local office and, if that is upheld, by a team of CPS experts at the ODHS central office.

Related to this, the GAO finds that the Founded disposition letter was not sent to you after the assessment was completed. We have ensured that the letter is sent to you now, so that you may pursue your due process afforded by Oregon Administrative Rule (OAR) 413-010-0735 through 413-010-0745. While this office would agree that the amount of time between the conclusion of assessment activity and the issuance of your Founded letters is not typically acceptable, the agency has the discretion not to send the disposition when "[d]omestic violence has been identified and if providing the notice would increase the risk of harm to a child, adult victim, or Department employee. This

exception may only be made with Department management approval based on documentation of risk” (OAR 413-010-0715).

Finally, the GAO identified an error in ODHS systems which made it appear that you had a second “Founded” report for a CPS Assessment that concluded in April 2020. This office sought clarification from a CPS consultant, who is an internal ODHS policy expert, and the conclusion that this was not intentional or correct. GAO is ensuring documentation is updated to reflect that you were not “Founded” for a second time as of this writing.

2. You allege ODHS has misrepresented specifics of your case to the Court.

GAO response: A ‘Founded’ for child abuse, though it can be a contributing factor, is not the sole reason for ODHS to seek and continue to maintain custody of children in Oregon. Assessments are not typically completed before ODHS achieves temporary custody or jurisdiction in a case, meaning there is a further separation between the legal and administrative decisions that are made. ODHS is responsible for conducting investigations into the safety of children in Oregon and finding safe placement with familial or other foster placements while parents ameliorate safety concerns. Though ODHS bears a large responsibility for the process, the Child Welfare program does not act autonomously in their decisions to protect children—continuous court involvement and review provide checks and balances to ensure that ODHS complies with the law, does not exceed its authority, protects the welfare of your child and affords you your legal rights. You have been afforded the opportunity, through your attorney, to challenge ODHS’ allegations at each court hearing, most recently in September 2021.

According to notes from the September 13, 2021 hearing reviewed by GAO, Judge Troy appeared to express both support and criticism of your ability to demonstrate safe parenting. He asserted that “the conduct that occurred in March 2021 was not safe” and further “[t]he conduct that occurred in July 2021 was not safe.” These events have nothing to do with events described in ODHS ‘Founded’ dispositions and occurred outside of your work with the Department. Further, the judge noted specifically how safety service providers are consistently leaving your aid, despite the efforts of ODHS vetting potential candidates “left, right, and Sunday.”

The understanding of the Court does not appear to depend on the assertions of ODHS alone, and it is the responsibility of your attorney to present your alternative perspective. The GAO would be unable to assist you in any matters decided by the court, but this office does not agree that the ongoing custodial status of your children is the result of ODHS action or inaction.

3. *You allege that you have "followed the safety plan" and called police on Mr. Washington, and you feel you are being held responsible for your abuser's actions.*

GAO response: GAO has reviewed information independent of ODHS documentation that you have continued contact with Mr. Washington, despite the concerns of CPS and the Court. While you have stated that the contact was not mutual or initiated by you there is evidence to suggest otherwise, in several instances:

- The Judge in Dependency proceedings has discussed your interactions with Mr. Washington as items of concern. ODHS has received and GAO have reviewed at least seven police reports involving your contact with Mr. Washington since January 2020. While you have stated that these were reports of you following the safety plan, the reports state that you had been a willing participant in many of these interactions with Mr. Washington. As an example, you allowed him to stay at your home and drove him around on errands.
- There have been multiple times that police reports state that you have informed them that you and Mr. Washington have just broken up or that you have been "on again off again for the past year" during which time your children had been removed from your care, as recently as a May 2021 police report.
- A July 2021 police report describes a violent altercation between yourself and Mr. Washington after you contacted him for assistance with your car. This altercation not only led to a car accident, but also police contact and Mr. Washington's arrest. You were also in attendance at Mr. Washington's hearing related to this case and spoke on his behalf. It has been further alleged by Mr. Washington that you had put "money on his books" while he was incarcerated.

While our office does not disregard the progress that you may have made over the course of your ODHS case, there is evidence to suggest that your contact with Mr. Washington has not stopped. This exposure to domestic violence is

ODHS's main concern related to the safety of your children, and it appears to be the perspective of the Court as the main barrier to their return to your care.

4. *You allege that the Department has failed to provide referrals for services focused on safe reunification for an extended period of time. Referrals have not been domestic violence-focused programs.*

GAO response: ODHS has documented several referrals, beginning with two referrals to domestic violence programs in December of 2019, when your children were still in your care. There have been multiple referrals for psychological evaluations, two of which have been missed after the Department confirmed them between you or your attorney. During the course of our review, we found there is currently a psychological evaluation scheduled that may have already occurred. Referrals are not required for all services ordered, and parents are permitted to and may find their own services if possible, in order to find a good fit for these services. However, when seeking your own service providers, it is important for parents to consult with ODHS to determine whether they are appropriate services. Services and referrals should be done as a team effort in order to find the best fit as well as meet ODHS standards.

5. *You assert that the Department has subjected your children to traumatic vaginal exams without probable cause.*

GAO response: As part of the CPS investigation, your children were seen at CARES NW, community-based medical program for the assessment, treatment and prevention of child abuse, for a forensic interview and examination. As the legal guardian at the time, ODHS consented, and the children's father Mr. Davis was also present. The children were given the opportunity to choose not to participate in the examination of their "private parts" if they were not comfortable. They made the request that a nurse leave, but otherwise consented. The children made several concerning disclosures during this time, but none related to sex abuse occurring to themselves and the third-party examination supported this. Finally, as previously stated concerning evidentiary standards, ODHS was not conducting a criminal investigation and probable cause is not a requirement to assess ongoing child safety.

6. *You assert that the Department has misrepresented your accessibility Domestic Violence grant money.*

GAO response: You applied and were determined eligible for Domestic Violence (DV) grant through ODHS as of December 16, 2019. You did not access the funds within 90 days of the date you were found eligible, per OAR 461-135-1230. You were informed of the time frame in which the funds would need to be used by during the intake process (form DHS 0456DV). After 90 days, the request for funding was closed. In order to qualify for the DV grant you must have qualifying dependents in your care, and after the expiration of the DV grant on March 16, 2020 you no longer met this requirement.

At the time you applied for the DV grant, you also received a referral for Domestic Violence services to Immigrant and Refugee Community Organization (IRCO) as well as Domestic Violence Resource Center (DVRC). During this time, it is noted that you had missed a Jobs program appointment, had mail returned, had a non-working phone number and were nonresponsive to agency efforts to reach you. If you had participated in these domestic violence services, one could reasonably argue that your participation would likely have helped in yielding a different outcome in dependency court, given that the main concerns were threat of harm related to Domestic Violence. You neither engaged in the referred services nor did you utilize the Domestic Violence Grand funds that were awarded to you.

The GAO has been able to independently verify Self-Sufficiency program documentation and have not found any instance where Child Welfare staff misrepresented the above information.

7. *You assert that the Department refused to provide oversight and case management, which means they could not have accurately measured your progress.*

GAO Response: At each court proceeding, a family report is created or updated. This family report is discoverable to all parties, including your attorney. Progress relating the parent's participation in services as well as parents' progress toward meeting 'Conditions for Return' are outlined in this document as well as discussed during the hearing. You have additionally been provided with letters of expectation that discuss these topics and what is expected of you

by ODHS. The most recent family report was completed on September 3, 2021 relating to the hearing held on September 13, 2021, and discoverable to all legal parties. Updated action agreements and an updated letter of expectation are currently waiting on supervisor approval and should be sent out to you shortly.

At the most recent court hearing September 13, 2021, the court made a "more than reasonable efforts" finding in favor of ODHS's efforts with you and your family. The documentation compiled by ODHS and the independent finding of the Court contradicts any assertion that ODHS is not making efforts toward reunification.

8. The agency is now claiming a change in permanency due to my son's need for permanency when you allege there has been no expediency delivered to this point.

GAO response: The federal government has mandated Adoption and Safe Families Act (ASFA) timelines which are supplemented by state law (ORS 419B.498), which requires when a child has been in substitute care under the responsibility of the Department for 15 months of the most recent 22 months, ODHS is required to concurrently plan reunification and termination of parental rights. The "15 of 22-month rule" is cumulative, stopping and starting, as the child leaves and re-enters care. The following is an example of how this cumulative "15 of 22 month" rule is calculated: 1/15/21 Child Enters Care 4/15/21 Child Leaves Care and Stays Home for Six Months 10/15/21 Child Re-Enters Foster Care 10/15/22 If child remains in care for another 12 months, the state will apply the "15 of 22" rule on 10/15/22 because the child will have been in foster care for a cumulative total of 15 out of the previous 22 months.

In this case, the Court has determined that insufficient parental progress has been made for reunification of Feliciano back into your care or the care of his father. A change of plan does not mean that Feliciano will not be returned to you, but that the agency must be working not only on a plan for reunification but also a plan for permanency if he is not able to return home to one of his parents. Feliciano may still be returned to you if sufficient progress is made, and the judge orders his return home.

9. *You allege the agency has not provided an effort to maintain your family's ties.*

GAO response: ODHS has continued to provide supervised visitation between you and your children. When your two daughters' cases were dismissed to their father, the agency no longer had jurisdiction over them. ODHS cannot force the father to participate in visitation with the daughters if he chooses not to do so, as they are not in the custody of the state. The agency has not opposed visitation with Feliciano and his sisters. As recently as September 8, 2021 Amira, Amaiya, Feliciano all participated in an ODHS supervised visit with you, although previous approval was not obtained this visit was still supported by ODHS. Additionally, conversations have taken place regarding these visits with Feliciano's relative resource family and the girls' father. Issues with child custody and visitation with children who are not within the care and custody of ODHS are civil matters and as such must be addressed in family court.

10. *Determining a parent's parental protective capacities is a requirement of developing a case plan which you allege has entirely been overlooked and neglected in your case. You also state that you have never interviewed with the agency.*

GAO response: The agency has continued to assess your parental protective capacities on an on-going basis. While speaking with ODHS staff this occurs regularly. A formal interview is not necessarily how this information is gathered. A discussion of protective capacities occurs during a family engagement meeting towards the start of your permanency case. Information pertaining to your enhanced and diminished parental capacities is also located on each respective Family Plan that is discovered before every court hearing, most recent family report is dated September 3, 2021.

11. *Since your shelter hearing, you state that you acted in parental protective capacities with my attempts to leave the state with your son, which you feel should have been rewarded, not punished.*

GAO response: On February 3, 2021 the Multnomah County Court lawfully ordered Feliciano and his sisters into the temporary care and custody of ODHS. If the Court had understood that you were acting as a protective parent, the

order could have been to return the children back into your care. Instead, the Court ordered the children into the care and custody of ODHS and has subsequently upheld this order at each respective hearing relating to Feliciano. For your daughters, the Court dismissed ODHS and remitted custody to their father who was deemed as safe to parent by the Courts. The Courts found that you were not acting to protect your children from the threat of Harm related to domestic violence ORS 419B.005. As the Court is the final arbiter of your ability to safely parent your son, it is the responsibility of your attorney to demonstrate this alternative perspective.

12. GAO did not respond to your outreach after initial conversations.

GAO response: The GAO Administrator has acknowledged that our internal controls around good case management failed, and your GAO case was open without response to you for an unacceptable length of time. Corrective actions are being put into place so that this does not happen again. As the GAO Administrator has worked closely with the newly assigned Ombuds on your current case concerns, we find that the majority of your arguments at present and over time have been principally legal in nature, while our primary role and responsibility is around administrative action or inaction.

Findings

The GAO finds that your 'Founded' assessment letter were not sent to you at the conclusion of a CPS assessment. We asked that this be sent to you immediately and have seen documentation of this letter being sent on October 4, 2021. Issuance of this letter is an important piece of your due process, as your receipt of it marks the beginning of a 30-day period in which you can appeal these findings. The first level of appeal is a local office review. If CPS findings are upheld at the local office, you will have the opportunity to appeal that decision to a Central Office review. This process should be outlined in the letters you receive, but you may also review them for yourself in [OAR 413-010-0735 through 413-010-0745](#).

You may also be interested in requesting the reports that accompany ODHS' findings, which will outline with more specificity the information contributing to their decision. If you would like to be able to obtain a copy of your ODHS assessment or other ODHS records, you are able to request them directly from ODHS Public Records Unit by the following methods:

Phone: 503-945-5617

Email: dhs.recordsrequest@dhsosha.state.or.us

Website: <https://www.oregon.gov/DHS/Pages/RecordRequests.aspx>

For other matters you have shared with this office, we do not agree that ODHS has acted outside of statute, rule, or policy in working with you and your family. At this time, no further responses will be provided on these matters by the GAO unless there is new information or evidence presented that incorrect ODHS administrative action, not legal action, has occurred. Please note that the GAO will review and document any information that you send to this office in the future, however a change in our findings would only be made and a response provided to you if we find the ODHS program and services are not in compliance with policies, procedures, rules, and laws based on the new information or evidence presented.

We appreciate the opportunity to review your concerns and wish you well.

Respectfully,

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